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Homework #2 – US Legislation Restricting Information Collection (6.2)

A current issue many US citizens are experiencing is the feeling that their personal information is constantly being taken from them, and their own privacy is being stripped at the same time. However, the United States government has put forward multiple pieces of legislation that protects US citizens privacy and personal data for them. The 3 pieces of legislation that will be in this essay are the Children's Online Privacy Protection Act (COPPA), Employee Polygraph Protection Act (EPPA), and California Consumer Privacy Act (CCPA). All three of those examples revolve around not allowing corporations to gather excessive data on users or allowing users to understand what data corporations are collecting.

The Children's Online Privacy Protection Act reduces the amount of information companies can gather on children twelve years old and younger, it makes it mandatory for parents to give consent before gathering data on child users. The main objective this Act has is to protect the privacy of the children that are using these online services and only letting corporations take the data that is necessary. A modern-day infringement of this law would be how in 2022 Epic Games, the owners of Fortnite, had to pay a \$275 million settlement because they were caught gathering data from their child users without getting parental permission. This law, and settlement are a good example of the government setting barriers for

corporations to not collect our data, and the punishment corporations face when breaking these rules.

The second example is the Employee Polygraph Protection Act; this piece of legislature does not allow employers to use lie detector tests on employees in most circumstances. This is an example of weaker legislature that protects citizens' privacy, due to the exceptions that can allow polygraphs to be used. In the book it lists exceptions such as if they work in pharmaceuticals and security, or if the company has suffered economic loss, and the biggest exception is that EPPA only effects private businesses, meaning state, federal, or local governments are allowed to administer polygraph tests. While this is a much weaker example of data protection, it is a very old example, getting passed in 1988, and it still offers some levels of security for employees.

The final piece of legislation that is not in the book is the California Consumer Privacy Act. The CCPA allows customers that partake in for-profit businesses to have a much better level of understanding and transparency of what data is being collected and stored. Within this act it requires companies to tell users what data is being collected, and it also allows users to delete the data, giving control back to the user. Another vital piece to this act is the fact customers have the right to opt-in or opt-out of the sale of their personal data, children under the age of 13 require parental permission. The last part of the act that will be brought up is that it protects users that opt-out of collection, it does not allow the corporations to give them less or worse service, making it safe to opt-out. Overall, the CCPA protects Californian citizens a

great deal, and gives them a very strong level of security while utilizing popular websites or applications.

The concern of US citizens surrounding their data, and privacy is a valid worry, however the US has put forth many pieces of legislature that aid in making citizens feel much safer and their privacy more in their hands. There remain concerns surrounding personal privacy, but as more legislature gets passed supporting privacy the concerns will be reduced and made easier to bear. Overall while privacy and data collection is a concern of many citizens, the US government has put forward pieces of legislation that help in many cases.

Works Cited

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California Consumer Privacy Act (CCPA). State of California - Department of Justice - Office of the Attorney General. (2025, January 28). <https://oag.ca.gov/privacy/ccpa>